

These Guidelines also apply to Santa Rosa Division cases filed under or converted to Chapter 13 on or after December 1, 2017 through December 31, 2018.

**UNITED STATES BANKRUPTCY COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN FRANCISCO DIVISION**

**Guidelines for Payment of Attorney's Fees in Chapter 13 Cases
(Effective April 1, 2014)**

The following guidelines set forth presumptively reasonable fees for Chapter 13 cases and set forth simplified procedures for seeking such fees.

This court has issued guidelines regarding the "Rights and Responsibilities of Chapter 13 Debtors and their Attorneys." Those guidelines describe certain legal services that an attorney agrees to perform for the attorney's clients (the Basic Services). Through these fee guidelines, the court determines the fees that an attorney may receive for performing the Basic Services (the Guideline Fees) and sets forth simplified procedures for applying for Guidelines Fees.

Fees and Fee Applications.

1. Counsel may receive an order approving fees and costs up to the amounts set forth in Paragraph 2 without filing a detailed application if:
 - a. Counsel has filed and served the Chapter 13 Trustee with an executed copy of the current San Francisco Division "Rights and Responsibilities of Chapter 13 Debtors and Their Attorney," copies of which are available on the Court's website; and
 - b. No objection to the requested fees has been made.
2. The maximum fee that can be approved through the procedure described in Paragraph 1 is:

\$4,000 for Basic Services; and an additional:

\$850 if the case involves real property claims;

\$500 for each additional parcel of real property with an encumbrance of at least \$10,000;

\$700 if the case involves unfiled tax returns or objections to claims of taxing agencies;

\$500 if the case involves vehicle loans or leases;

\$1,800 if the case involves an operating business;

\$300 if the debtor has twenty-five or more creditors;

\$800 if the case involves domestic support claims;

\$300 if the case involves student loans;

\$500 if the case involves Motions to Extend Stay;

\$600 if the case involves Motions to Avoid Lien as to Personal Property;

\$1,250 if the case involves Motions To Avoid Lien as to Real Property, in which case Counsel's fee under this provision includes final disposition of the lien following completion of a confirmed plan.

3. Additional flat fees for services rendered will be automatically approved upon application by Counsel, without requiring the submission of time records and without a hearing, as follows:
 - (a) Plan modifications filed after one year from the petition date: **\$400**;
 - (b) Permission to resell or refinance real property (unless the order confirming the plan permits sale or refinance without an order of the court), or for one or more motions to avoid judicial lien(s):
 - i. Not requiring court hearing: **\$300**;
 - ii. Requiring court hearing: **\$400**;
 - (c) New motions for relief from automatic stay, excluding unopposed motions, filed after one year from the petition date:
 - i. Regarding personal property: **\$400**;
 - ii. Regarding real property: **\$700**;

- (d) Motions to dismiss, convert, or reconvert (excluding Chapter 13 Trustee's motions to dismiss regarding plan payments and also excluding unopposed motions: **\$450;**
 - (e) Assistance with preparation of tax returns: **\$200;**
 - (f) Motions for plan modifications filed by the Chapter 13 Trustee more than one year after the petition date based on trustee's review of post-confirmation income, excluding unopposed motions: **\$400;**
 - (g) Chapter 13 Trustee's motions to dismiss regarding plan payments filed more than one year after the petition date, but only if Counsel appears at the hearing, the motion is later withdrawn and the Debtor has not filed a motion to modify the plan: **\$200.**
- 4. The Guideline Fees set forth above in Paragraphs 2 and 3 are viewed by the court as the maximum reasonable fees for Basic Services and are intended to be the only allowed compensation for such services absent unexpected and unusual circumstances.
 - 5. The simplified procedures for awarding fees in accordance with Paragraphs 1, 2 and 3 will not be available for Chapter 13 debtor's counsel if:
 - (a) An executed copy of the current San Francisco Division "Rights and Responsibilities of Chapter 13 Debtors and their Attorneys" is not filed as of the date first set for the meeting of creditors under 11 U.S.C. §341; or
 - (b) A timely objection to the attorneys fees has been filed.
 - 6. If counsel seeks fees for Basic Services in excess of the Guideline Fees, seeks fees for services other than Basic Services, chooses not to utilize these fee procedures, or if the simplified procedures are not available because of either of the conditions described in Paragraph 5, then:

- (a) all fees including the retainer must be approved by the court following a hearing and proper application, whether or not the fees are payable by the Chapter 13 Trustee and whether or not fees are paid for services in connection with the Chapter 13 case; and
 - (b) Counsel must comply with Rule 2002 and 2016 of the Federal Rules of Bankruptcy Procedure, as well as the "Guidelines for Compensation and Expense Reimbursement of Professionals" adopted by the Bankruptcy Judges of the Northern District of California.
- 7. Counsel may request reimbursement of out-of-pocket court filing fees advanced, even if counsel elects to receive the automatic fees available in accordance with Paragraph 2.
- 8. On its own motion or the motion of any party in interest, the court may order a hearing to review any fee, whether paid or unpaid.